

**SUBSTITUTE FOR
HOUSE BILL NO. 4933**

A bill to amend 1980 PA 299, entitled
"Occupational code,"
by amending sections 303a and 411 (MCL 339.303a and 339.411),
section 303a as amended by 2014 PA 265 and section 411 as amended
by 2020 PA 388; and to repeal acts and parts of acts.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 303a. The term of office of a member of a board appointed
2 under this article ~~shall commence~~ **commences** on 1 of the following
3 dates, as applicable:

4 Accountancy	July 1
5 Architects	April 1
6 Barbers	October 1



1	Collection agencies	July 1
2	Cosmetology	January 1
3	Employment agencies	October 1
4	Hearing aid dealers	October 1
5	Land surveyors	April 1
6	Landscape architects	July 1
7	Mortuary science	July 1
8	Professional engineers	April 1
9	Real estate appraisers	July 1
10	Real estate brokers and salespersons	July 1
11	Residential builders	April 1

12 Sec. 411. (1) Subject to subsection (2), a person that fails
 13 to renew a license or registration on or before the expiration date
 14 shall not practice the occupation, operate, or use the title of
 15 that occupation after the expiration date printed on the license or
 16 registration. A license or registration ~~shall lapse~~ **lapses** on the
 17 day after the expiration date.

18 (2) A person that fails to renew a license or registration on
 19 or before the expiration date is permitted to renew the license or
 20 registration by payment of the required license or registration fee
 21 and a late renewal fee ~~within~~ **not more than** 60 days after the
 22 expiration date.

23 (3) Except as otherwise provided in this act, **the department**
 24 **or a board may relicense or reregister** a person that fails to renew
 25 a license or registration within the time period ~~set forth~~
 26 **described** in subsection (2) ~~may be relicensed or reregistered~~
 27 without examination and without meeting additional education or
 28 training requirements in force at the time of application for
 29 relicensure or reregistration if all of the following conditions



1 are met:

2 (a) The person applies ~~within~~**not more than** 3 years after the
3 expiration date of the last license or registration.

4 (b) The person pays an application processing fee, the late
5 renewal fee, and the per year license or registration fee for the
6 upcoming licensure or registration period, subject to subsection
7 (8).

8 (c) ~~Any~~**The person satisfies any** penalties or conditions
9 imposed by disciplinary action in this state or any other
10 jurisdiction. ~~have been satisfied.~~

11 (d) The person submits proof of having completed the
12 equivalent of 1 year of continuing education within the 12 months
13 immediately preceding the date of application or as otherwise
14 provided in a specific article or by rule, if continuing education
15 is required of licensees or registrants under a specific article.

16 (4) Except as otherwise provided in this act, **the department**
17 **or a board may relicense or reregister** a person ~~may be relicensed~~
18 ~~or reregistered~~ subsequent to 3 or more years after the expiration
19 date of the last license or registration if the person shows that
20 the person meets the requirements for licensure or registration as
21 established by the department in rules or procedures, which may
22 require a person to pass all or part of a required examination, to
23 complete continuing education requirements, or to meet current
24 education or training requirements.

25 (5) Unless otherwise provided in this act, a person that seeks
26 reinstatement of a license or registration shall file an
27 application on a form provided by the department, pay the
28 application processing fee, and file a petition to the department
29 and the appropriate board stating reasons for reinstatement and



1 including evidence that the person can and is likely to serve the
2 public in the regulated activity with competence and in conformance
3 with all other requirements prescribed by law, rule, or an order of
4 the department or board. The procedure for conducting the review of
5 a petition for reinstatement is prescribed in article 5. If
6 approved for reinstatement, the person shall pay the per year
7 license or registration fee for the upcoming license or
8 registration period if appropriate, in addition to completing any
9 requirements imposed under section 203(2).

10 (6) The department shall issue an initial or renewal license
11 or registration not later than 90 days after the applicant files a
12 completed application. The application is considered received on
13 the date the application is received by any agency or department of
14 this state. If the **department considers an** application ~~is~~
15 ~~considered incomplete, by the department,~~ the department shall
16 notify the applicant in writing, or make information electronically
17 available, ~~within~~ **not more than** 30 days after receipt of the
18 incomplete application, describing the deficiency and requesting
19 the additional information. The 90-day period **described in this**
20 **subsection** is tolled from the date the department notifies the
21 applicant of a deficiency until the date the requested information
22 is received by the department. The determination of the
23 completeness of an application does not operate as an approval of
24 the application for the license or registration and does not confer
25 eligibility of an applicant determined otherwise ineligible for
26 issuance of a license or registration.

27 (7) Notwithstanding the time periods described in subsection
28 (6), in the case of a real estate broker and associate broker
29 licensed under article 25, the time period for approval by the



1 department of a completed application is 30 days and the time
2 period for notification sent in writing, or made electronically
3 available, by the department to the applicant regarding an
4 incomplete application is 15 days after the receipt of the
5 application by any agency or department of this state.

6 (8) If the department fails to issue or deny a license or
7 registration within the time required ~~by~~**under** this section, the
8 department shall return the license or registration fee, and shall
9 reduce the license or registration fee for the applicant's next
10 renewal application, if any, by 15%. A failure to issue or deny a
11 license or registration within the time required under this section
12 does not allow the department to otherwise delay the processing of
13 the application, and the department shall place that application,
14 when completed, in sequence with other completed applications
15 received at that same time. The department shall not discriminate
16 against an applicant in the processing of an application based on
17 the fact that the license or registration fee was refunded or
18 discounted under this subsection.

19 (9) The director shall submit a report by December 1 of each
20 year to the standing committees and appropriations subcommittees of
21 the senate and house of representatives concerned with occupational
22 issues. The director shall include all of the following information
23 in the report concerning the preceding state fiscal year:

24 (a) The number of initial and renewal applications the
25 department received and completed within the 90-day time period
26 described in subsection (6) and the 30-day time period described in
27 subsection (7).

28 (b) The number of applications denied by the department.

29 (c) The number of applicants that were not issued a license or



1 registration within the applicable time period and the amount of
2 money returned to licensees and registrants under subsection (8).

3 (d) The number of applications denied by the department
4 because of an applicant's lack of good moral character and a
5 summary, by category of offense, of the criminal convictions on
6 which those denials were based.

7 (10) Subsection (6) does not apply to a license or
8 registration for any of the following:

9 (a) A certified public accountant and registered accountant
10 under article 7.

11 (b) An agency non-owner manager of a collection agency under
12 article 9.

13 (c) A barber, student barber, student instructor, or barber
14 instructor under article 11.

15 ~~(d) An employment and consulting agent of a personnel agency~~
16 ~~under article 10.~~

17 ~~(d) (e)~~ A cosmetologist, manicurist, natural hair culturist,
18 esthetician, electrologist, instructor, or registered student under
19 article 12.

20 ~~(e) (f)~~ A hearing aid salesperson and trainee under article
21 13.

22 ~~(f) (g)~~ A mortuary science licensee, embalmer, or resident
23 trainee in mortuary science under article 18.

24 ~~(g) (h)~~ An individual architect, surveyor, or engineer under
25 article 20.

26 ~~(h) (i)~~ An individual landscape architect under article 22.

27 ~~(i) (j)~~ An individual residential builder and alteration and
28 maintenance contractor or a salesperson for a residential builder
29 and alteration and maintenance contractor under article 24.



1 (j) ~~(k)~~—A real estate salesperson under article 25.

2 (k) ~~(l)~~—A real estate appraiser under article 26.

3 (11) Notwithstanding any provision in this act to the
4 contrary, an individual or qualifying officer who is a licensee or
5 registrant under this act and who is mobilized for military duty in
6 the Armed Forces of the United States by the President of the
7 United States is temporarily exempt from any renewal license fee,
8 continuing education requirements, or other related requirements of
9 this act applicable to that license or registration. It is the
10 obligation of the licensee or registrant to inform the department
11 by written **notice** or ~~electronic mail~~ **email** of the desire to
12 exercise the temporary exemption under this subsection. If the
13 licensee applying for the temporary exemption is the individual
14 responsible for supervision and oversight of licensed activities,
15 the licensee shall provide notice of arrangements for adequate
16 provision of that supervision and oversight to the department. The
17 licensee or registrant shall accompany the request with proof, as
18 determined by the department, to verify the mobilized duty status.
19 If ~~it~~ **the department** receives a request for a temporary exemption
20 under this subsection, the department shall make a determination of
21 the requestor's status and grant the temporary exemption after
22 verification of mobilized duty status under this subsection. A
23 temporary exemption is valid until 90 days after the licensee's or
24 registrant's release from the mobilized duty on which the exemption
25 was based, but ~~shall~~ **must** not exceed 36 months from the date of
26 expiration of the license or registration.

27 (12) As used in this section, "completed application" means an
28 application that is complete on ~~its~~ **the** face **of the application** and
29 submitted with any applicable licensing or registration fees and



1 any other information, records, approval, security, or similar item
2 required by law or rule from a local unit of government, a federal
3 agency, or a private entity but not from another department or
4 agency of this state.

5 Enacting section 1. Article 10 of the occupational code, 1980
6 PA 299, MCL 339.1001 to 339.1022, is repealed.

7 Enacting section 2. Section 27 of the state license fee act,
8 1979 PA 152, MCL 338.2227, is repealed.

9 Enacting section 3. This amendatory act takes effect 90 days
10 after the date it is enacted into law.